

Hollowell Patent Group PLLC

www.hollowellpatent.com

August 1, 2021

Joseph Palmer
General Manager
Keith-Duarte

Dear Mr. Palmer:

This letter sets out the terms on which the firm will provide prosecution support for the patent portfolio of Keith-Duarte, and it records the scope of that work, the people who will carry it, and the commercial terms that govern it. It follows our conversations this summer and the schedule of pending matters your office sent afterward. When you have signed and returned the enclosed copy, this letter becomes the agreement between us and supersedes anything discussed before it.

The Prosecution Support We Will Provide

Under this engagement we carry the active prosecution of the Keith-Duarte portfolio: drafting and filing the applications your office directs, preparing and filing responses to office actions as they issue, and keeping each family current so that no filing or response goes past its date. We take the pending matters in the order the docket sets, review each file history against the office record before we act on it, and return to you a short written update against the relevant matter whenever a family moves.

Some work sits outside this letter and is available under a separate engagement if you request it. Under this engagement we are not preparing freedom-to-operate or validity opinions, conducting portfolio-wide clearance, or litigating any matter; where the prosecution reaches a question that calls for one of those, we will tell you and stop rather than begin work you have not authorized. Nothing we file or advise under this letter is an opinion that any patent is valid, infringed, or clear to practice, and it should not be read or relied upon as one.

How We Will Carry the Work

The docket is the center of this work, and everything else is arranged around it. We calendar every deadline in the portfolio, confirm each date against the office record, and route nothing out and let no date pass without its clearing docketing first; a date, once confirmed, is not quietly moved. You will hear from us on a regular schedule and

again whenever a response comes due, and each update will be tied to the matter it concerns, so that your file runs in order rather than as a single running narrative.

Who Will Do the Work

Heather Munoz, a partner in the prosecution group, leads the engagement and is responsible for what we file and for what we send you. Kelly Snyder, an associate, prepares the office-action responses and keeps the portfolio dockets reconciled against the office record, and Joseph Walker, an associate, works the specifications and file histories on the technical side of each matter. I read what leaves this office before it reaches you, as I do with all client work, and I am the person to call if at any point you are not satisfied with the work or with the people doing it.

Fees and Payment

Our fee for this engagement is \$39,500, and the basis on which it is set is stated on the signature page you will execute with this letter. Work commences on August 11, 2021, subject to your signature and to our receiving the portfolio schedule, access to the prosecution files, and confirmation of who at Keith-Duarte holds authority to approve a filing; we will not begin billing before that date.

We invoice monthly for the work of the preceding month, and each invoice is payable within thirty days of its date. If an invoice remains unpaid beyond its terms we may suspend work on the matter after written notice to you, and because the portfolio runs against live dates we will identify any deadline then at risk before we stop, so that a billing dispute never becomes a lost date.

Term and Termination

This agreement takes effect on the date you sign below and continues until the prosecution support described here is complete and our final invoice is paid. Either of us may end it earlier on written notice to the other. If the engagement ends before the work is finished, you will owe us for the work performed and the expenses incurred to that point, and we will hand over the file in the state it then stands together with a written note of what remains open and any date we know to be approaching.

Confidentiality

We will hold what you give us in confidence and use it only for this engagement, and access within the firm is limited to the people named above and to those whose work on the portfolio requires it. We will not disclose your information outside the firm without your consent, except where a court or another authority with jurisdiction

compels it, and in that event we will tell you first if we are free to do so. Our written analysis is prepared as privileged work product for you, and these obligations continue after the engagement ends.

Limitation of Liability

Our liability to you arising out of this engagement, whether framed in contract or in negligence, will not exceed the total fees you pay us under it, except in the case of our fraud or willful misconduct. Neither of us will be liable to the other for indirect or consequential loss, including lost profits or lost opportunity, whether or not the possibility was known in advance. Our work rests on the accuracy and completeness of the records you and the patent offices provide; where those records are wrong or incomplete, the consequences of the error are not ours to carry, though we will tell you as soon as we have reason to doubt what we have been given.

Governing Law

This agreement is governed by the law of the state in which our office sits, without regard to its conflict-of-laws rules. Before either of us begins a proceeding, we will try to resolve the dispute through discussion between people with authority to settle it. This letter and its signature page are the whole of the agreement on their subject, and either may be changed only in a writing signed by both of us.

If these terms match your understanding, please sign both copies of the signature page, keep one for your file, and return the other to my office. If any term does not, telephone me and we will settle it before you sign. The one thing I need from you to open the work is the signed letter; return it and we will docket the portfolio and take up the first matter due.

Sincerely,

Mary Bradley

Managing Partner

Date: August 1, 2021

Joseph Palmer

General Manager, Keith-Duarte

Date: August 1, 2021